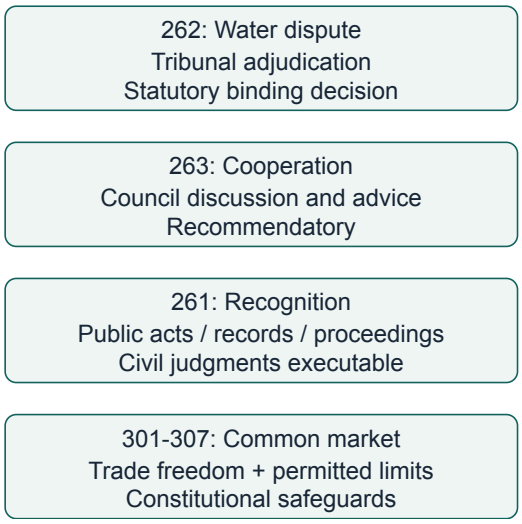
Inter-State Relations

1. Four constitutional links

- **262:** water-dispute adjudication. **263:** councils for discussion/cooperation. **261:** recognition of public acts, records and judicial proceedings. **301-307, Part XIII:** trade, commerce and intercourse.
- **Zonal Councils:** statutory regional forums under **States Reorganisation Act, 1956**; additional to constitutional mechanisms. Cooperation between States is as important as Centre-State cooperation.



Choose the mechanism according to the issue.

2. Water disputes: advice versus adjudication

- **262:** Parliament may provide adjudication of disputes about use/distribution/control of inter-State river/valley waters and exclude SC/other court jurisdiction as specified.
- **River Boards Act, 1956:** Union establishes advisory boards for inter-State river/valley regulation and development after the prescribed consultation/request process. **Board advises; tribunal adjudicates.**
- **Inter-State River Water Disputes Act, 1956:** Union establishes tribunal where negotiation cannot settle dispute; published decision final/binding under statute. Court-jurisdiction exclusion concerns the specified water dispute; **do not infer that every constitutional challenge, implementation question or appeal is categorically outside SC scrutiny**.
- **Tribunals in chapter - constitution year and parties at that time:** Krishna I **1969** - Maharashtra, Karnataka, Andhra Pradesh; Godavari **1969** - Maharashtra, Karnataka, AP, MP, Odisha; Narmada **1969** - Rajasthan, Gujarat, MP, Maharashtra.
- Ravi-Beas **1986** - Punjab, Haryana, Rajasthan; Cauvery **1990** - Karnataka, Kerala, Tamil Nadu, Puducherry; Krishna II **2004** - Maharashtra, Karnataka, AP.
- Vansadhara **2010** - Odisha/AP; Mahadayi **2010** - Goa/Karnataka/Maharashtra; Mahanadi **2018** - Odisha/Chhattisgarh. **Historical constitution table, not a list of tribunals all currently active**; State reorganisation changes parties, notably Telangana in Krishna matters.

3. Article 263 councils and the Inter-State Council

- President establishes council if public interest served; specifies duties, organisation and procedure. Possible functions: **inquire/advise on disputes; investigate/discuss common interests; recommend coordinated policy/action**.
- **Advisory council ≠ court:** SC **131** decides qualifying inter-government legal disputes; council can discuss legal/non-legal issues but recommendations are not binding judicial decrees.
- Chapter's subject-specific examples: Central Council of Health/Family Welfare; Local Government Council (earlier Local Self-Government, 1954); four regional sales-tax councils. Distinguish historical coordination arrangements from today's GST institutions.
- **Inter-State Council Order, 28 May 1990:** V.P. Singh government acted on Sarkaria's recommendation; proposed name “Inter-Governmental Council” was not adopted. Council's established duties focus common interests, coordinated policy/action and other matters referred by chair.
- **Chair PM; members:** State CMs; CMs of UTs with Assemblies; administrators of UTs without Assemblies; Governors where President's Rule operates; **six nominated Union Cabinet Ministers**, including Home Minister. Additional permanent invitees depend on reconstitution order; chapter lists five, not an immutable constitutional number.
- Recommendatory forum; meetings in camera; consensus; provision to meet at least **three times yearly** is not proof this frequency was achieved.
- **Standing Committee, 1996:** continuous consultation, processing issues; Union Home Minister chairs; chapter composition **five other Union Cabinet Ministers + nine CMs**, subject to notified reconstitution.
- **ISC Secretariat, 1991:** headed by Secretary to Government of India; also serves Zonal Councils since **2011**.

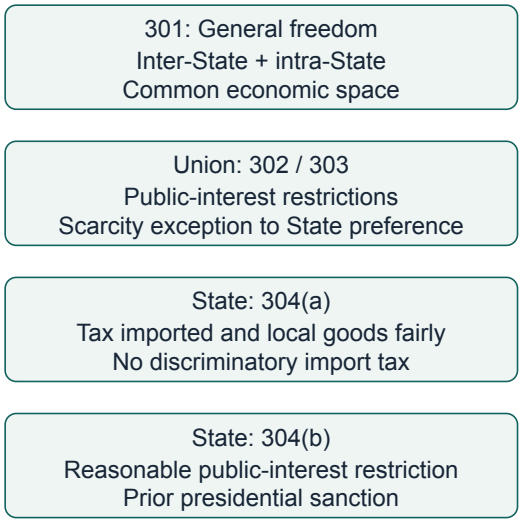
4. Full faith and credit - Article 261

- India-wide recognition of **public acts, records and judicial proceedings** of Union/States. Public acts include legislative/executive acts; public records include official records made by public servants.
- Parliament prescribes proof, conditions and effect; recognition does not make every State law territorially operative throughout India.
- **Final civil judgments/orders** executable anywhere in India according to law, without a fresh suit on judgment. This specific execution clause is about **civil**, not criminal, judgments; not an absence of national criminal-law enforcement.

5. Trade freedom and permitted restrictions

- **301:** free trade, commerce and intercourse across India, including **inter-State and intra-State**; aim a common economic space. Regulatory measures and all taxes are not automatically prohibited restrictions.
- **302:** Parliament restricts in **public interest**. **303:** neither level ordinarily gives State preference/discrimination through trade entries; Parliament's **scarcity-of-goods exception** permitted by 303(2).
- **304(a):** State can tax imported goods if similar local goods bear same treatment; **no discrimination against imports from other States/UTs**.

- **304(b):** State can impose **reasonable public-interest restrictions**; introduction/moving amendment requires **prior presidential sanction**. Distinguish clause (a)'s non-discriminatory tax from clause (b)'s trade restrictions.
- **305:** saves specified existing laws and State-monopoly laws within constitutional conditions. Government trade/business/industry/service may exclude private participation wholly/partly.
- **307:** Parliament may create implementation authority for **301-304**; chapter notes none created. Its US Inter-State Commerce Commission comparison is historical, not a statement that that US body still exists.



Parallel constitutional powers and limits.

6. Five Zonal Councils

- **Statutory, advisory/deliberative:** States Reorganisation Act, 1956; no judicial enforcement power. Zones reflect geography, rivers/communications, cultural/linguistic affinity, economic development, security and law/order.
- **Union Home Minister chairs all five**; CMs act as Vice-Chair by rotation for **one year**. Members: CMs + **two other Ministers from each State**, UT administrator as provided. Advisors without vote: nominated planning/policy representative, chief secretaries, development commissioners; NITI-associated participation reflects current institutional practice.
- **Northern - New Delhi:** Haryana, Himachal Pradesh, Punjab, Rajasthan, Delhi, Chandigarh, J&K, Ladakh. **Central - Prayagraj:** UP, Uttarakhand, MP, Chhattisgarh.
- **Eastern - Kolkata:** Bihar, Jharkhand, Odisha, West Bengal. **Western - Mumbai:** Gujarat, Maharashtra, Goa, merged UT Dadra & Nagar Haveli and Daman & Diu.
- **Southern - Chennai:** AP, Telangana, Karnataka, Kerala, Tamil Nadu, Puducherry. Newer official meetings also include **Andaman & Nicobar and Lakshadweep**; textbook lists/older MHA webpages can be incomplete. Headquarters in the chapter are conventional zonal locations; the common Secretariat is in Delhi.
- Objectives: national/emotional integration; curb divisive regionalism/linguism; smooth reorganisation's after-effects; exchange experience; coordinate social/economic policy and major development projects; balance regional interests.
- Subjects: economic/social planning, linguistic minorities, borders, inter-State transport and other shared concerns. **Boundary issue discussed ≠ council can unilaterally redraw boundaries**.

7. North-Eastern Council

- **Separate statutory council:** NEC Act **1971**, operational **8 August 1972**; not a sixth Zonal Council under the 1956 Act.
- Eight States: **Assam, Arunachal Pradesh, Manipur, Meghalaya, Mizoram, Nagaland, Tripura, Sikkim**; Sikkim added by **2002 amendment**.
- Regional planning/coordination and review of development; textbook security/public-order description reflects original functions. **2002 amendment made NEC the regional planning body**; do not copy superseded functions as its current statutory mandate without qualification.

8. One-minute recall / Mains

- **262 tribunal; 263 council; 261 recognition; 301 freedom. ISC = constitutional basis/PM; Zonal = 1956 statute/Home Minister; NEC = 1971 separate statute/eight States.**
- **304(a): non-discriminatory tax; 304(b): reasonable restriction + prior presidential sanction. Council advice ≠ binding tribunal/court decision.**
- Mains: dispute/problem → constitutional mechanism → delays/implementation/cooperation challenge → negotiation, reliable data, effective institutions and accountable compliance.

References

- Official Constitution: Articles 261-263 and Part XIII.
- MHA annual report: Southern Zonal Council participation.